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[2] The defendant resists payment of this benefit on the basis that the plaintiff was employed at the date of the accident, and on the basis that she has failed to prove that she suffers a complete inability to carry on a normal life as a result of and within 104 weeks after the accident.

BACKGROUND

[3] As of August 16, 2003, the plaintiff was 33 years of age, married, and the mother of three children (Melissa 15, April 10 and Ben 9). She had married at age 16, had a grade 10 education, and had worked sporadically in retail sales at Sears and Toys R Us and as a restaurant cook. Mostly, however, she stayed home with the children preoccupied with the duties of a homemaker for a family of five.

[4] She described a typical day of house work as follows: up at 5:30 a.m.; see husband off to work; shower, get the children up and ready for school; drive the children to school; return home to do chores such as dishes, cleaning floors, doing laundry, meal preparation, feeding the two family dogs, and doing such outside maintenance work as cutting the lawn. She and her husband did the shopping for groceries.

[5] Typical recreation activities in which the plaintiff participated in the two years prior to the accident were hiking (twice per month during the proper seasons), family football games, “shooting hoops” in the backyard and, in the winter, ice skating at a local rink. She also helped her elder daughter who was a martial arts student.

[6] The plaintiff used a 1990 minivan to transport the children to school, to various activities and to appointments. She was driving this vehicle on August 16, 2003 when, while waiting in an intersection to make a left turn, another motor vehicle proceeding against a red light, struck her

vehicle in the area of the driver's door. With her in the van were her two daughters, neither of whom apparently suffered any physical injuries.

[7] The plaintiff's head hit one of the van's pillars causing a large contusion on her cheek. She suffered bruising from the seatbelt and back and shoulder injuries. She was able to walk to the nearby St. Joseph's Ambulatory Clinic where she was assessed and sent home. There she experienced headache pain, visual disruption and back and shoulder pain.

[8] The accident had happened on a Saturday. She was seen by her family physician, Dr. Tam, on the following Monday. He recommended physiotherapy and later prescribed sleep and anti-inflammatory medications.

[9] The defendant insurance company approved of and funded every treatment plan recommended for the plaintiff; it has refused, however, to pay the NEB.

[10] OCF-1, the Application for Accident Benefits, was completed by the plaintiff on September 3, 2003 in which she indicated that she was unemployed at the time of the accident. She did not reveal that for about four or four-and-a-half months leading up to August 16, 2003 she had been babysitting the two-year-old child of one of her husband's co-workers.

[11] The plaintiff's explanation at trial for this inconsistency was that she was doing a favour for a friend who paid her nominal compensation of \$30 per day. She testified that she travelled by public transit to and from Burlington each day to babysit the child in its own home. The \$30 stipend went largely to paying her travel costs.

THE ISSUES

[12] Mr. Burns, counsel for the defendant, outlined the issues in this trial as follows:

1. Was the plaintiff employed as of the date of the accident?
2. If the answer to question 1 is yes, does the plaintiff meet the eligibility criteria in section 4(1) for entitlement to the Income Replacement Benefit (IRB)?
3. If the answer to question 2 is no, does the plaintiff meet the eligibility criteria in section 12(1)1 for the NEB?
4. If the answer to question 3 is yes, for what period of time is the NEB payable?

[13] Was the plaintiff employed?

Section 12(1)1 of the SABS provides that:

The insurer shall pay an insured person who sustains an impairment as a result of an accident a non-earner benefit if the insured person meets any of the following qualifications:

1. The insured person suffers a complete inability to carry on a normal life as a result of and within 104 weeks after the accident and does not qualify for an income replacement benefit.

(Emphasis added)

[14] The relevant eligibility criteria for the IRB, given the circumstances in this case, are contained in section 4(1)1:

The insurer shall pay an insured person who sustains an impairment as a result of an accident an income replacement benefit if the insured person meets any of the following qualifications:

1. The insured person was employed at the time of the accident and, as a result of and within 104 weeks after the accident, suffers a substantial inability to perform the essential tasks of that employment.

(Emphasis added)

[15] “Employed” is a defined term in the SABS section 2(5):

For the purpose of this Regulation, a person is employed if, for salary, wages, other remuneration or profit, the person is engaged in employment, including self-employment, or is the holder of an office, and “employment” has a corresponding meaning.

[16] The position of the defendant is that the plaintiff was employed as a babysitter earning \$150 per week for 7 hours work each day, five days per week. This would seem to be an obvious conclusion following from the plain language of section 2(5).

[17] The position of the plaintiff, however, is that the babysitting was not employment. She was doing a favour for a family friend. The \$30 per day for 7 hours of babysitting translates to about \$4.25 per hour out of which the plaintiff paid the cost of public transportation between Hamilton and Burlington. Furthermore, a gloss has been placed on the terminology in s. 2(5) in arbitration decisions by the Financial Services Commission of Ontario (FSCO).

[18] Even before the SABS was updated in 1996 to include the definition of “employment” and “employed” in section 2(5), arbitrators addressed their minds to the meaning and substance of employment. In *Theresa Walicki v. Security National Insurance Company*, January 27, 1993, OIC File No. A-001403 (referred to at p. 5 in *Menonna v. Allstate Insurance Company of Canada*, August 30, 1994, OIC File No. A-003005), the applicant was a homemaker who also delivered newspapers part time. The arbitrator considered that the small number of hours she

worked and her nominal remuneration placed her at the extreme low end of the employment spectrum. Ms. Walicki was held to be primarily a homemaker.

[19] In the *Menonna* case, the applicant was employed as a part-time lunchroom supervisor at a local school. In addition to her homemaking duties at the time of the accident, she walked to the school each weekday and spent about one hour monitoring students in the cafeteria. She was paid less than \$100 per week. The arbitrator held that Mrs. Menonna's part time job was not her primary vocation. She was found to be primarily a homemaker.

[20] The arbitrator in *McRitchie v. Allstate Insurance Company of Canada*, March 5, 2007, OIC File No. A04-001359 referred to both pre-1996 jurisprudence (*Menonna*) and post-1996 jurisprudence (*Mroue v. Zurich Insurance Company*, May 20, 1998, OIC File No. A97-000028) in applying the section 2(5) definition of "employed".

[21] At p. 12 in *McRitchie*, the arbitrator notes that:

Mrs. McRitchie testified that at the time of her accident and for a short period after, she was volunteering at the Fort Francis bingo hall where she sold "Nevada's" (bingo cards). Her pay was an "honorarium" of \$20.00 per day regardless of the number of hours she worked, and she typically worked twice a week for a period of six-and-a-half to seven hours per session.

[22] The arbitrator held that Mrs. McRitchie's work more closely resembled the work done by the applicant in the *Menonna* case than the work done by the applicant in *Mroue*. The arbitrator in *Mroue* had evidence that the applicant had worked as many as forty or more hours per week in her family's grocery business. The arbitrator then applied the section 2(5) definition of "employed" as follows at p. 6 of the reasons in *Mroue*:

I find that the term “employed” entails a commitment to the workforce in exchange for which one’s services are compensated by money or some like advantage.

In this case, I find that at the time of this accident, there was a requisite commitment to the workforce by Mrs. Mroue. Although there was some flexibility in her hours and duties, there was nonetheless a need for her services as well as a continuing commitment by her to provide her services. I find that this was not ad hoc, sporadic connection to the workplace, but rather one with a significant measure of predetermined regularity of what had to be accomplished, with direction as to when and how the assigned duties might be carried out.

Although Mrs. Mroue did not receive direct compensation in terms of a salary, there was a benefit obtained by the supermarket, which translated into a monetary advantage to the Mroue family and hence the Applicant herself.

[23] The arbitrators’ gloss on the term “employed” includes consideration of the spectrum of employment situations, whether or not a job is a primary vocation or an *ad hoc*, sporadic connection to the workplace, the hours devoted to the employment, whether or not the remuneration received is more akin to an “honorarium” than to “salary, wages, other remuneration or profit”, the person’s commitment to the workforce, and whether or not one is primarily a homemaker.

[24] I find that the plaintiff’s connection and commitment to the workforce at the time of the accident was sporadic, and that she was primarily a homemaker. Her testimony at trial that she did not regard the babysitting to be a job and, accordingly, did not report the \$30.00 per day as income, was credible. She was doing a favour for her husband’s co-worker (Arseneault).

[25] Although the plaintiff continued with the babysitting for an additional month after the accident, she left the Arseneault family to find a replacement when she had a falling out with her husband and left her home to live temporarily with her mother in another community.

[26] Finally, it should be noted that the defendant invoked the plaintiff's answer to the request to admit that prior to the accident of August 16, 2003 the plaintiff was employed as a babysitter for a child 7 hours per day, 5 days per week, and was paid \$30 per day. At trial, Mr. Ferro, counsel for the plaintiff, indicated his intention to move pursuant to rule 57.05 to withdraw those admissions. All counsel agreed, however, that such a motion would be redundant.

[27] The plaintiff confirmed those facts in her testimony at trial. Those admissions do not, however, mean that she was engaged in "employment" within the meaning of that term in section 2(5) of the SABS.

THE SECOND ISSUE

[28] The answer to question 1 being "no", there is no need to consider whether or not the plaintiff meets the eligibility criteria in section 4(1) for entitlement to the IRB. Furthermore, as noted by Mr. Burns, the plaintiff indicated in her OCF-1 Application for Accident Benefits, that she was unemployed. The defendant had no reason to consider that IRBs may be in play.

THE THIRD AND FOURTH ISSUES

[29] Does the plaintiff qualify for the NEB and, if so, for what period of time is the NEB payable?

[30] The position of the plaintiff is that she qualifies for the NEB and that the defendant's obligation to pay continues to date pursuant to subsection 12(2) of the SABS: "...the amount of the non-earner benefit shall be \$185 for each week that the insured person is eligible to receive the benefit."

[31] The position of the defendant is that the plaintiff does not qualify for this benefit; accordingly, the answer to issue 3 is "no". There is no need, therefore, to deal with issue 4 concerning the period for which the NEB is payable.

[32] The defendant relies on the evidence of employment within 104 weeks of the accident. The plaintiff continued to babysit for at least one month after the accident of August 16, 2003. On the advice of her treating psychologist, Dr. Lisa Keith, the plaintiff sought employment.

[33] Between March 14, 2004 and mid-July, 2004 she worked as a caregiver to a businessman in Burlington who suffered from mobility impairments. Six days per week between the hours of 7 a.m. and 11 a.m. or noon she assisted him to get out of bed, get cleaned up and dressed, get him into his wheelchair, get him his breakfast, and then to his business office in the residence. She did the occasional load of laundry for him and some housework such as preparing the spare bedroom and cleaning a bathroom whenever visitors were expected. She did some paper work for him in preparation for a conference and drove him to the conference. She also did paperwork for his business and picked up and delivered materials for him.

[34] The plaintiff left this employment after she was subjected to verbal abuse by the man.

[35] About six weeks later, the plaintiff began to work at a convenience store (Avondale) within walking distance from her residence. For two and one-half years between September,

2004 and March, 2007 she worked as a cashier and store clerk, initially from 16 to 20 hours per week, and later up to 25 to 30 hours per week. Her duties included stocking shelves and the milk cooler on Thursdays.

[36] Prior to the accident she had reported incomes for 2001, 2002, and 2003 respectively of \$1, \$1, and \$233. Post-accident her reported income for 2004, 2005 and 2006, respectively, was \$1,623, \$8,571 and \$7,434.

[37] The defendant invokes the reasoning in *Galdamez v. Allstate*, 2011 ONSC 4606 a case in which the injured plaintiff claimed entitlement to both IRBs and NEBs in the alternative via separate actions. The motions judge granted the insurer's motion for summary judgment dismissing the plaintiff's claim for NEBs saying at para. 12: "It is not possible that the plaintiff could qualify for non-earner benefits. On the agreed facts, she qualifies for income replacement or nothing."

[38] In *Galdamez*, the plaintiff argued that until it has been settled in the other action (claiming IRBs) that she does not qualify for IRBs, it is possible that she could qualify for non-earner benefits. The motions judge disagreed with the proposition that a person who was employed at the time of the accident can be entitled to non-earner benefits if he or she, although able to perform the essential tasks of the job, suffers a complete inability to carry on a normal life. Ramsay J. stated the following at paras. 9 to 11:

[9] ...In my view, a person who can work at his or her own job cannot be said to suffer a complete inability to carry on a normal life. Such a person has the ability to lead a normal life at least in part. I do not think that the interpretation proposed by the plaintiff makes sense of the legislation.

[10] It seems to me to be more consonant with the scheme of the legislation to interpret clause 12(1)1 to say that a person who was employed at the time of the accident does not qualify for non-earner benefits, whether he or she meets the disability requirement or not.

[11] This does not leave a gap. A person who was employed at the time of the accident is entitled to income replacement if a certain level of disability is established. A person who was not employed is entitled to non-earner benefits if a higher level of disability is established. There is no situation in which a person who was employed at the time of the accident could be so disabled as to qualify for non-earner benefits, but not income replacement benefits.

[39] The court was advised that Galdamez is currently under appeal. In any event, having concluded that the babysitting work does not come within the meaning of “employed” in the SABS, the issue becomes one of whether the personal assistant job and convenience store job preclude the plaintiff from meeting the criteria in section 12(1) of the SABS thereby bringing to an end any period for which NEBs may be payable.

[40] The defendant’s position is that on the basis of the medical evidence, including the plaintiff’s own reports as to the degree of her recovery from her accident injuries, she does not meet the legislated criteria for entitlement to receive the NEB.

[41] The plaintiff relies on the same medical history as confirming the fact that she suffered and continues to suffer a complete inability to carry on a normal life as a result of the accident.

THE MEDICAL EVIDENCE

[42] The plaintiff’s family doctor, Dr. C. Tam, completed an OCF-3 Disability Certificate in September, 2003. She described the plaintiff’s impairments as “soft tissue injury neck, headache, bilateral soft tissue injury shoulder (right greater than left), soft tissue injury mid-back

or thoracic region”. She diagnosed neck and shoulder pain, headaches, and mid back/thoracic muscle strain.

[43] Dr. Tam listed the pre-accident activities the plaintiff’s impairments prevented her from carrying on: groceries, playing sports with her children, riding a bicycle and doing housekeeping duties without help. She was now unable to wash floors and required help with vacuuming and doing the laundry.

[44] Plaintiff’s daughters April and Marlena testified. They confirmed the range of pre and post accident activities engaged in by their mother. Significantly, they both attested to their mother’s attempts to carry on as before, and to her inability to do so now because of pain. Marlena, in particular, testified that the plaintiff now attempts to do housework but next day is in bed for most of the day. Her mother now attempts shorter hikes, but again pays for it later with the onset of pain.

[45] Dr. Tam referred the plaintiff to Dr. Lisa Keith, a clinical psychologist for a psychological assessment under section 24 of the SABS. Dr. Keith concluded that “Ms. Martin is experiencing chronic pain, headaches, cognitive concerns, and serious emotional distress”. She recommended, and the plaintiff later underwent, some 20 sessions of psychotherapy with positive results attested to by her daughter Marlena in her testimony at trial.

[46] Dr. Keith noted at page 8 of her report of December 18, 2003, that a prior history of abuse and trauma, previous episodes of depressive and anxious affect, marital discord, and a prior motor vehicle accident were complicating factors. She concluded that that history of trauma increased her vulnerability to the effects of the August, 2003 accident.

[47] Dr. Keith, as well as all other medical professionals who interviewed the plaintiff, detected no evidence of exaggeration or omission of significant evidence. Although she neglected to tell various medical professionals who examined her after August, 2003 about a rib injury suffered in March, 2003, a slip and fall incident on March 1, 2004 and a motor vehicle collision in 2005, there is no evidence that injuries suffered in those incidents have any bearing on the complaints arising from the August 16, 2003 accident.

[48] At 11 years of age in 1982, the plaintiff was struck by a motor vehicle resulting in skull and arm fractures and a brain injury. There is no suggestion of any residual effect of those injuries at the time of the 2003 accident. She suffered from depression when April and Ben were born. This was treated by Dr. Tam. In 2001 Dr. Benson, a rheumatologist diagnosed osteopenia after she complained of elbow and knee pain. Celebrex was prescribed as a treatment. The plaintiff acknowledged suffering occasional migraine headaches following the birth of her son, Ben. She suffered a right side rib injury in March 2003 as a result of a physical altercation with Marlana.

[49] On March 1, 2004 she slipped and fell, injuring her right elbow, scraping her left hand and experiencing buttock pain. She was involved in a minor motor vehicle collision in June, 2005. Finally, on July 19, 2009 she attended at hospital emergency for neck pain incurred while lifting a case of water.

[50] In my view, there is no evidence that any of those events account for the chronic pain originating with the accident of August 16, 2003. The July 19, 2009 incident probably exacerbated existing neck pain symptoms. Nor is there any evidence that assessments by the

medical practitioners who testified at trial would have been altered by a detailed knowledge of that pre-accident history.

[51] The plaintiff had attended at Parkway Physio for a series of physiotherapy treatments beginning on August 21, 2003 and ending on April 27, 2004. These treatments involved massage, acupuncture, exercises, heat, stretching and time on a treadmill.

[52] By October 8, 2003 the plaintiff reported a 50 percent to 60 percent overall improvement in her neck and back condition. By January, 2004 she reported a 70 percent overall improvement, a figure which increased to 75 percent to 80 percent by April 27, 2004, when she was discharged from treatment. Thereafter, she sought no further treatment.

[53] Dr. Peter C. Parker, physiatrist, assessed the plaintiff on November 7, 2005, on behalf of the defendant. He was not called to testify. On consent, however, his written report was filed in evidence. At p. 7 of that report he concluded that:

The clinical evaluation of Ms. Martin was consistent with a diagnosis of a chronic hypertonic state of the neck, upper back and low back musculature which can be a complication of soft tissue injuries such as what would have been sustained as a result of the motor vehicle accident on August 16, 2003. Although this condition requires Ms. Martin to modify her activities, these impairments would not be of a magnitude that Ms. Martin would be substantially disabled from performing the essential activities of normal living that she performed prior to the motor vehicle accident.

[54] Tracie Shaw testified. She is an occupational therapist who conducted an occupational therapy in home assessment on November 1, 2005 on behalf of the defendant. This was done under section 42 of the SABS to assess the plaintiff's need for housekeeping. Ms. Shaw

observed the plaintiff executing various housekeeping tasks. She noted that the plaintiff demonstrated consistent effort throughout the assessment.

[55] Ms. Shaw concluded as follows at p. 13 of her report:

Although this therapist does not doubt that the client experiences pain, it is [my] opinion that the client demonstrated functional abilities and tolerances to complete all activities of daily living in a paced manner. An education session is recommended to instruct the client on principles of energy conservation, pacing, proper body mechanics and task simplification to promote function and minimize pain with activity.

[56] Ms. Shaw saw no need for housekeeping assistance for the plaintiff.

[57] On January 10, 2008, Dr. Gary Bruce Challis, Registered Psychologist conducted a Psychological Insurer Evaluation of the plaintiff. The purpose of the assessment was to determine if she is substantially disabled from carrying on her usual daily activities, enjoyment of life and employment activities. He concluded that she was not. This answer at p. 10 of Dr. Challis' report summarizes his conclusions:

Based upon a review of the clinical file and symptoms reported by the claimant, it appears that subsequent to the August 16, 2003 accident, Ms. Martin may have developed a number of symptoms associated with what appears to have been an Adjustment Disorder. She did initially have distressing thoughts and images of the accident, anxiety associated with various other activities, and focus on the unwelcome and distressing changes that her injuries and the accident brought forth. Currently, however, Ms. Martin does not present with any symptomatology that is present to such an extent so as to warrant diagnosis.

[58] Dr. K. Zakzanis conducted a neuropsychological assessment of the plaintiff on behalf of the defendant on October 31, 2005. His conclusion was that, from a neuropsychological standpoint, the plaintiff does not suffer a complete inability to perform the essential tasks of her

housekeeping activities, nor to carry on activities of daily living, as a result of the motor vehicle accident.

[59] In his testimony at trial, Dr. Zakzanis provided the insight that perhaps should be obvious to all, that one can suffer an impairment without that resulting necessarily in an inability.

[60] Lesya Dyk, occupational therapist, assessed the plaintiff on August 26, 2011. She performed a physical assessment and conducted a functional assessment including material handling (lifting and carrying). Ms. Dyk's report of August 29, 2011 is mostly a regurgitation of the subjective symptoms related to her by the plaintiff.

[61] Based upon an incomplete history and subjective complaints from the plaintiff, and with no knowledge of the reports and conclusions of Drs. Challis, Sullivan and Zakzanis, she nevertheless purported to comment on emotional and psychological factors. She testified that she relied on Dr. Keith's diagnosis of psychological impairments and stated that, as an occupational therapist, her job is to take diagnoses and transpose them into an assessment of function abilities regarding activities of daily living. She did not take into account the improvements achieved by the plaintiff in 20 counselling sessions with Dr. Keith. She did not complete a history of the plaintiff's emotional and anxiety problems prior to August 16, 2003.

[62] Ms. Dyk simply repeats the plaintiff's assertion that she quit her job at the Avondale store because of her anxiety and inability to handle the stress of the job. When asked on discovery why she quit that job, the plaintiff answered "we went through a management change and it was just very stressful". At p. 7 of Dr. Challis's report of January 14, 2008, he reported that she told him that:

She stopped working [at the Avondale convenience store] due to personal choice of wanting to take a break and not due to any physical, psychological or accident related issues. She has not yet returned to work at this time for personal reasons, however, notes that she will likely seek employment at sometime in the future.

[63] In her trial testimony, the plaintiff's daughter Marlena who worked with her at the Avondale store made no mention of her mother being stressed by that job. As well, in light of the above, I am unable to credit the plaintiff's testimony at trial that the thought of going to work at the Avondale store made her physically ill.

[64] Marlena stated that she helped her mother stock shelves on some Thursdays only, and that her mother was capable of stocking shelves but that it took her longer to do so.

[65] I would accord very little weight to the self-serving exercise reflected in the Lesya Dyk report and in Ms. Dyk's conclusions, including at p. 6, that "there is evidence that Ms. Martin has anxiety which affects her thoughts and feelings about performing activity which ultimately affects her ability [to] engage whether she is in pain or not."

[66] Dr. Ali Ghouse, physiatrist, assessed the plaintiff on March 31, 2011. He testified at trial and his report of May 11, 2011 was filed in evidence. He concluded that the plaintiff suffered impairments within 104 weeks of the accident, and that she currently has a substantial inability to undertake her homemaking and home maintenance activities and she is substantially unable to undertake gainful employment. He adds, at p. 2 of his report, "These impairments have been continuous since the accident".

[67] Dr. Michael Rathbone, neurologist, assessed the plaintiff on May 17, 2011. He testified at trial and his report of May 26, 2011 was filed in evidence. His examination was for the purpose of detecting any neurological impairment. At p. 21 of his report he answered the question “Has the Plaintiff sustained Impairment as a result of the accident?” By saying “Yes, she sustained both physical and psychological impairments”. He acknowledged on cross-examination that that answer makes no reference to neurological impairments.

[68] Dr. Rathbone’s report is entirely favourable to the position espoused by the plaintiff in this action including, at p. 22 of the report, an answer based extensively on the reasoning in *Health v. Economical Mutual Insurance Company*, 2009 ONCA 391.

ANALYSIS

[69] For convenience of reference the relevant provisions of the SABS are quoted here:

12(1) The insurer shall pay an insured person who sustains an impairment as a result of an accident a non-earner benefit if the insured person meets any of the following qualifications:

1. The insured person suffers a complete inability to carry on a normal life as a result of and within 104 weeks after the accident and does not qualify for an income replacement benefit.

2(1) In this Regulation,

“impairment” means a loss or abnormality of a psychological, physiological or anatomical structure or function;

- (4) For the purpose of this Regulation, a person suffers a complete inability to carry on a normal life as a result of an accident if, as a result of the accident, the person sustains an impairment that continuously prevents the person from engaging in substantially all of the activities in which the person ordinarily engaged before the accident.

[70] The test for non-earner benefits is prescribed by the Ontario Court of Appeal in its 2009 decision in *Heath* (supra) at para. 50:

50 Although s. 12 and s. 2(4) of the 1996 SABS have not been considered extensively by the courts, they have been considered in a number of arbitration decisions. Based on my review of various decisions, as well as a consideration of the language and purpose of the 1996 SABS, and a review of the predecessor provisions, I would adopt the following general principles as being part of a proper approach to the application of these sections:

- Generally speaking, the starting point for the analysis of whether a claimant suffers from a complete inability to carry on a normal life will be to compare the claimant's activities and life circumstances before the accident to his or her activities and life circumstances after the accident. This follows from the language of the section as well as a review of the predecessor provisions. That said, there may be some circumstances in which a comparison, or at least a detailed comparison, of the claimant's pre-accident and post-accident activities and circumstances is unnecessary, having regard to the nature of the claimant's post-accident condition.
- Consideration of a claimant's activities and life circumstances prior to the accident requires more than taking a snap-shot of a claimant's life in the time frame immediately preceding the accident. It involves an assessment of the appellant's activities and circumstances over a reasonable period prior to the accident, the duration of which will depend on the facts of the case.
- In order to determine whether the claimant's ability to continue engaging in "substantially all" of his or her pre-accident activities has been affected to the required degree, all of the pre-accident activities in which the claimant ordinarily engaged should be considered. However, in deciding whether the necessary threshold has been satisfied, greater weight may be assigned to those activities which the claimant identifies as being important to his/her pre-accident life.

Although this approach differs somewhat from the approach taken in *Walker v. Ritchie*, 2003 CanLII 17106 (Ont. S.C.) in which the trial judge focused on those activities that were "most important" to the claimant before the accident, in my opinion, it better reflects the high threshold created by the language of the section and at the same time allows a claimant focussed inquiry.

- It is not sufficient for a claimant to demonstrate that there were changes in his or her post-accident life. Rather, it is incumbent on a claimant to establish that those changes amounted to him or her being continuously prevented from engaging in substantially all of his pre-accident activities. The phrase “continuously prevents” means that a claimant must prove “disability or incapacity of the requisite nature, extent or degree which is and remains uninterrupted.”
- The phrase “engaging in” should be interpreted from a qualitative perspective and as meaning more than isolated post-accident attempts to perform activities that a claimant was able to perform before the accident. The activity must be viewed as a whole, and a claimant who merely goes through the motions cannot be said to be “engaging in” an activity. Moreover, the manner in which an activity is performed and the quality of performance post-accident must also be considered. If the degree to which a claimant can perform an activity is sufficiently restricted, it cannot be said that he or she is truly “engaging in” the activity.
- In cases where pain is a primary factor that allegedly prevents the insured from engaging in his or her former activities, the question is not whether the insured can physically do these activities, but whether the degree of pain experienced, either at the time, or subsequent to the activity, is such that the individual is practically prevented from engaging in those activities.

[71] The defendant relies on the proposition that if a claimant is employed at the time of the accident, she is not eligible for a non-earner benefit: *Sutherland v. Singh* [2011] O.J. No. 2901 (O.C.A.). As noted above, I have found that the plaintiff was not employed at the time of the accident.

[72] It relies as well on the reasoning in *Galdamez* (supra) where Ramsay J. states at para. 9 that “a person who can work at his or her own job cannot be said to suffer a complete inability to carry on a normal life.” It was not disputed in *Galdamez* that the claimant was employed at the time of the accident. The quoted words must be understood in that context.

[73] If within 104 weeks of the accident the claimant for the NEB becomes employed she must still prove that she meets the criteria in s. 12(1) i.e. “a complete inability to carry on a normal life”. I do not take the above-quoted words of Ramsay J. to mean that a finding that a claimant resumes employment after the date of the accident ends the inquiry under s. 12(1).

[74] I would not regard the work done by the plaintiff as personal assistant to the Burlington businessman as “employment” within the meaning of s. 2(5) of the SABS. In her trial testimony, the plaintiff stated only that she was paid in cash. Her income tax return information for 2004 shows total earnings of \$1,623. This works out to about \$100 per week for the four months she worked for that gentleman (Exhibit 5, Tab 10). This was less than the remuneration received while babysitting. Also, rather than being a commitment to the workforce, she sought out this position for therapeutic reasons at the behest of Dr. Keith. Furthermore, she quit the position without hesitation when the employer first verbally abused her.

[75] The work at the Avondale store, on the other hand, does show a commitment to the workforce. It fulfilled her intention to seek employment when the children grew older. This work having commenced after the date of the accident (September, 2004 to March, 2007), it is necessary to consider the criteria in s. 12(1) using the test in *Heath* (supra).

[76] It is not disputed that the plaintiff suffered physical impairments as a result of the accident. Did she suffer a complete inability to carry on a normal life i.e., did she sustain an impairment that continuously prevents her from engaging in substantially all of the activities in which she ordinarily engaged before the accident?

[77] Applying the test in *Heath*, and looking at the broad picture painted by the evidence in this case, I must “compare the claimant’s activities and life circumstances before the accident” to those after the accident.

[78] Before the accident, the plaintiff had the ability to work full time. After the accident, she recovered this ability. I reject as untrue the suggestion that she left the Avondale job after two and one-half years because of stress.

[79] As a homemaker for the family of five she had no difficulty completing all inside and outside household chores. After the accident, she reported in the OCF-12 Activities of Normal Life (Exhibit 8) of September 3, 2003, difficulties with mobility, shopping, washing dishes, and almost all heavy household duties, indicating that she needed help to do them. She could do laundry, ironing and such outdoor chores as cutting the grass and clearing the snow, only with help.

[80] She reported no difficulty post-accident in doing virtually all of her pre-accident cognitive activities.

[81] Important family recreational activities in which she participated pre-accident were hiking, cycling, “shooting hoops”, throwing a football, skating and, on occasion, driving a bucket of golf balls. She testified that her ability to participate in these activities post-accident are severely limited.

[82] According to the test in *Heath*, supra, I find that in the immediate post-accident period it cannot be said that the plaintiff “engaged in” most of her pre-accident homemaker and recreational activities. Pain prevented her from doing so.

[83] In my view, the plaintiff met the criteria for entitlement to the NEB. It remains only to determine the period for which the NEB must be paid.

[84] Section 12(2) of the SABS provides that:

(2) Subject to subsection (3), the amount of the non-earner benefit shall be \$185 for each week that the insured person is eligible to receive the benefit.

[85] Subsection (3) has no application in the circumstances here. The NEB has been found to be akin to non-pecuniary or general damages: see *Walker v. Ritchie*, 2005 Can LII 13776 (ON C.A.) at paras. 84 and 87. Unlike general damages which are awarded once and for all, the NEB is a statutorily fixed amount payable each week so long as “the insured person is eligible to receive the benefit”.

[86] The plaintiff became eligible as of the date of the accident. Since then, however, she has received physiotherapy including massage, acupuncture, exercises, heat, stretching, and exercise on a treadmill. She has received counselling and instruction on how to pace herself in performing activities of daily living in order to minimize pain.

[87] By October 8, 2003, she reported a 50 percent to 60 percent improvement. By January, 2004 she reported a 70 percent improvement which, by the time of her discharge from treatment on April 27, 2004 had reached a level of 75 percent to 80 percent improvement.

[88] Two elements of the test in the *Heath* decision of the Court of Appeal are that:

The phrase “continuously prevents” means that a claimant must prove “disability or incapacity of the requisite nature, extent or degree which is and remains uninterrupted.”

and

In cases where pain is a primary factor that allegedly prevents the insured from engaging in his or her former activities, the question is not whether the insured can physically do these activities, but whether the degree of pain experience, either at the time, or subsequent to the activity, is such that the individual is practically prevented from engaging in those activities.

[89] The plaintiff's trajectory of improvement following the accident was such that by September, 2004 she was able to commence employment at the Avondale store, a job which lasted for two and one-half years during which her working hours per week increased. As was the case with the babysitting, the job with the Burlington businessman, she ceased working at the Avondale store for reasons other than an inability to perform the essential tasks of the those undertakings.

[90] Members of her family now assist more with household chores such as laundry. Each person in the family now has his or her own laundry hamper, and does his or her own laundry. Her son Ben helped with the heavier chores such as cutting the grass and taking out the garbage. The plaintiff still engages in outdoor sports activities such as hiking and throwing a football, but at a much more reduced rate.

[91] Tracie Shaw's in home assessment of the plaintiff in November, 2005, led her to conclude that despite the pain, the plaintiff demonstrated functional abilities and tolerances to complete all activities of daily living in a paced manner. Ms. Shaw saw no need for housekeeping assistance for the plaintiff.

[92] Later in November, 2005, Dr. Parker, a physiatrist, assessed the plaintiff. He concluded that although her pain condition requires the plaintiff to modify her activities, she was not “substantially disabled from performing the essential activities of normal living that she performed prior to the motor vehicle accident”.

[93] In October, 2005, Dr. Zakzanis conducted a neuropsychological assessment, and in January 2008, Dr. Challis conducted a psychological evaluation of the plaintiff. Neither assessment found her to be substantially disabled from carrying on her usual daily activities as a result of the motor vehicle accident.

[94] I would accord very little weight to the 2011 assessment by the physiatrist, Dr. Ghouse who found the plaintiff to be substantially unable to undertake her homemaking activities and substantially unable to undertake gainful employment. The evidence in this case does not support either conclusion in my view.

[95] Similarly, I would accord very little weight to the 2011 assessment by the neurologist, Dr. Rathbone. Although engaged to assess neurological impairment, his report makes no reference to such impairment. He purports instead to apply the reasoning in the *Heath* case.

[96] Applying that reasoning to the totality of the evidence in this case, I find that the claimant has proved “disability or incapacity of the requisite nature, extent or degree which is and remains uninterrupted” only for a period since the accident and ending well before this trial commenced. I find as well that the pain which the plaintiff advances as a primary factor which allegedly prevents her from engaging in her former activities, is not such that she is practically prevented from engaging in those activities.

CONCLUSION

[97] The plaintiff has proved that she qualified for the NEB as of the date of the accident. The insurer has approved treatment plans which, on the plaintiff's own testimony, have alleviated her accident-related impairments significantly. The evidence bespeaks a progressive and significant improvement in the plaintiff's ability to conduct her pre-accident activities, including full time employment.

[98] A reasonable inference as to when she ceased to qualify for the NEB would be at the end of four years after the accident. By that time she had been assessed by Tracie Shaw and Dr. Parker, she had completed two and one-half years of employment with the Avondale store, and would undergo a confirmatory assessment a few months later by Dr. Challis.

[99] There will be judgment for the plaintiff accordingly against the defendant for payment of the NEB for four years plus applicable interest.

[100] If necessary, the parties may make brief written submissions on costs of the action, commencing with the plaintiff within 20 days of the release of these reasons followed by the defendant within a further 20 days.

[101] In the event that both parties wish to make oral submissions on costs, they may arrange an appointment through the office of the Trial Co-ordinator.

CAVARZAN J.

Released: December 16, 2011

CITATION: Martin v. TD General Insurance Company, 2011 ONSC 7512
COURT FILE NO.: 06-23412
DATE: 2011-12-16

ONTARIO

SUPERIOR COURT OF JUSTICE

BETWEEN:

MELISSA MARTIN

Plaintiff

– and –

TD GENERAL INSURANCE COMPANY

Defendant

REASONS FOR JUDGMENT

CAVARZAN J.

JC:mg

Released: December 16, 2011